

		severance of Plaintiff's Lemon Law claims. Plaintiff and Nissan North America, Inc., may stipulate to sever the 5th-7th causes of action, or stay those causes of action until the completion of arbitration on other claims. If the parties cannot stipulate, each may file a brief not to exceed 10 pages, no earlier than 9 court days before the status conference, addressing the party's position regarding whether Plaintiff's Lemon Law claims should be severed or stayed pending the arbitration of the other claims. With respect to the 11th Cause of Action seeking to recover from Defendant's bond obtained pursuant to Veh. Code section 11710, the matter is STAYED pending the completion of the arbitration proceedings. (Code Civ. Proc. §1281.4.) The remainder of this action, including any claim for injunctive relief, is STAYED pending the outcome of the arbitrations. (Code Civ. Proc. §1281.4.) The jury trial scheduled for August 16, 2027 is vacated. An Alternative Dispute Resolution Review Hearing is scheduled for March 19, 2027 at 8:30 a.m. in Department C44 as to those causes of action in arbitration. A Status Conference Re Severance of Plaintiff's Lemon Law Claims (Causes of Action 5-7) is scheduled for November 20, 2026 at 8:30 a.m. in Department C44. Moving Defendants shall provide notice.
7	Pinzon vs. Opes Investments Inc. 2025-01509447	Motion for Arbitration Provision <i>Hearing continued. See minute order dated 8/18/26.</i>
8	Streker vs. Cobb 2024-01449117	Motion for Leave to File Cross Complaint <i>Hearing vacated. See minute order dated 8/18/26.</i>
9	Wicker vs. Volkswagen Group of America, Inc. 2025-01532708	Demurrer to Complaint Defendant Unstoppable Automotive Group AMV LLC, dba Audi Mission Viejo's demurrer to the 5th cause of action for negligent repair in plaintiff David Wicker's Complaint is OVERRULED, as this cause of action states sufficient facts. (Code Civ. Proc., § 430.10, subd. (e); <i>Ladd v. County of San Mateo</i> (1996) 12 Cal.4th 913, 917 [elements]; Complaint, ¶¶ 47-48 [duty created by delivery

		of vehicle for repairs, and to perform repairs “in accordance with industry standards”], 49 [breach by “failing to properly store, prepare and repair the Subject Vehicle in accordance with industry standards”], 50 [proximately caused damages].) This cause of action alleges violation of a tort duty independent of any contractual obligation associated with the sale of the vehicle, such that the economic loss rule does not apply. (Complaint, ¶ 48; <i>Rattagan v. Uber Technologies, Inc.</i> (2024) 17 Cal.5th 1, 23 [“the economic loss rule does not act as an absolute bar to tort recovery in every case in which the parties have a contractual relationship”]; see also <i>North American Chemical Co. v. Superior Court</i> (1997) 59 Cal.App.4th 764, 780–781 [economic loss rule “would seem to have little or no application when the commercial relationship of the parties does not involve the sale of goods or products, nor the rules developed under the law merchant and the Uniform Commercial Code, but rather relates only to the performance of services”].) A specific damages amount need not be alleged at the pleading stage. (<i>Furia v. Helm</i> (2003) 111 Cal.App.4th 945, 957 [notwithstanding Code Civ. Proc., § 425.10, subd. (a)(2), specific damages allegations are only necessary when seeking a default judgment; otherwise, “the absence of a specific amount from the complaint is not necessarily fatal as long as the pleaded facts entitle the plaintiff to relief”].) Finally, while the notice of demurrer also cites Code of Civil Procedure section 430.10, subdivision (f), the moving papers do not show how the 5th cause of action, or the Complaint generally, is so uncertain that moving party cannot reasonably determine what issues must be admitted or denied, or what counts or claims are directed against it. (<i>Khoury v. Maly's of Calif., Inc.</i> (1993) 14 Cal.App.4th 612, 616; see also <i>A.J. Fistes Corp. v. GDL Best Contractors, Inc.</i> (2019) 38 Cal.App.5th 677, 695 [demurrers for uncertainty should be “granted only if the pleading is so incomprehensible that a defendant cannot reasonably respond”]; <i>Lickiss v. Financial Industry Regulatory Authority</i> (2012) 208 Cal.App.4th 1125, 1135 [uncertainty demurrers strictly construed “because ambiguities can reasonably be clarified under modern rules of discovery”].) Motion to Strike The motion to strike punitive damages by defendants Volkswagen Group of America, Inc. and Unstoppable Automotive Group AMV
--	--	--

		LLC, dba Audi Mission Viejo is GRANTED IN PART, with leave to amend, and DENIED IN PART. (Code Civ. Proc., §§ 435, 436 [authorizing motion].) The motion is GRANTED, with leave to amend, as to defendant Unstoppable Automotive Group AMV LLC, dba Audi Mission Viejo. This defendant is only named in the 5th cause of action for negligent repair, and there are no facts alleged to show malice, oppression, and/or fraud on the part of this defendant. (<i>Nolin v. National Convenience Stores, Inc.</i> (1979) 95 Cal.App.3d 279, 285-286 [“It has long been the rule that conduct classified only as unintentional carelessness, while it may constitute negligence or even gross negligence, will not support an award of punitive damages”].) Accordingly, the punitive damages allegation at ¶ (e) of the prayer for damages (Complaint at 13:7) is ordered stricken as to this defendant, with leave to amend. The motion is DENIED as to defendant Volkswagen Group of America, Inc., who is named in the 6th cause of action for fraudulent concealment, and which fraud claim is alone sufficient to support punitive damages. (<i>Stevens v. Superior Court</i> (1986) 180 Cal.App.3d 605, 610 [“Civil Code section 3294 ... treats ‘oppression, fraud, or malice’ as separate bases for imposition of exemplary damages ... [a] fraud cause seeking punitive damages need not include an allegation that the fraud was motivated by the malicious desire to inflict injury ... [t]he pleading of fraud is sufficient”].) Plaintiff is granted 15 days to file a First Amended Complaint addressing punitive damages as to defendant Unstoppable Automotive Group AMV LLC, dba Audi Mission Viejo, if at all. Case Management Conference set February 5, 2027 at 8:30 a.m. in Department C44. Plaintiff shall give notice.
--	--	--